

motion solely to the Issue of Duty, facts addressing conduct related to whether Pacific Union and/or Dan Joy met or breached the duty raise questions as to whether Plaintiffs are seeking a determination beyond the existence or nonexistence of a duty owed by Pacific Union to them under Civil Code § 1088(b).

Denial Without Prejudice

The Court denies the motion based on the procedural deficiencies set forth. The Court in its discretion denies the motion without prejudice, such that if Plaintiffs desire, they can refile the motion to correct the procedural issues as the Court does not reach the merits of any issue of duty by this ruling.

Evidentiary Issues and Evidentiary Objections

Given the Court's ruling on the motion, the Court does not address the parties' requests for judicial notice as not material to the ruling. Under Code of Civil Procedure § 437c(q), the Court only needs to rule on evidentiary objections material to the Court's ruling. Given the Court's ruling, the Court does not rule on the evidentiary objections to defendant's evidence. Counsel for Pacific Union is also advised that, although Pacific Union's response to UMF Nos. 14 and 15 refer the Court to "Evidentiary Objections to Declaration of Adam Bailey," the Court's Odyssey system does not include any such objections, nor did Pacific Union's proof of service of its opposition papers filed on January 27, 2026 list any such evidentiary objections.

14. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
***HEARING ON MOTION IN RE: ATTORNEY'S FEES**
FILED BY: HERITAGE BANK OF COMMERCE
TENTATIVE RULING

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to August 21, 2026 at 9:00 a.m. in Department 32.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO INTERROGATORIES**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

Plaintiff Frank Gallagher (Plaintiff or Gallagher) brings the instant motion to compel further responses to Form Interrogatories and further responses to a Request for Production of Documents from

Defendant 8 Vini, Inc. (Defendant or “8 Vini”), and for sanctions.

The motion to compel is denied except for Request for Document No. 14, 20 and 25.

Plaintiff sued his former employer, defendant 8 Vini, Inc. alleging that it failed to pay him agreed upon commissions, breached their contract, breached the implied covenant of good faith and fair dealing, failed to timely pay him all of the wages due to him upon termination, failed to provide accurate wage statements, and competed unfairly. (Motion to Compel Further Responses to Interrogatories, filed May 1, 2025, p. 4)

Individual defendant Simon De Giuli, (“Defendant De Giulli”) is the CEO of 8 Vini, In., a small family-run business that imports high quality Italian wines to the U.S. (Declaration of Christina Ciu (Ciu Dec.) ¶ 3, attached as Ex. 2 to the Friend Dec. IOMTC Docs.) Defendant De Giulli was the Plaintiff’s direct supervisor and has a “unique knowledge” regarding the Plaintiff’s allegations. (Ciu Dec. ¶ 4)

December 12, 2024, Plaintiff served Form Interrogatories—Employment [Set 26 One] and Special Interrogatories [Set One] upon Defendant. Declaration of Noam Glick ISO MTC Interrogatories, (Glick Dec. ISO MTC Inter., ¶ 2)

On January 16, 2025, 8 Vini requested a 30-day extension to respond to the discovery, which Gallagher granted. (Glick Dec. ISO MTC Inter., ¶ 3)

On January 31, 2025, 8 Vini requested an additional 14-day extension to respond to the discovery which Plaintiff granted. (Glick Dec. ISO MTC Inter., ¶ 4)

On February 7, 2025, 8 Vini requested a third extension, for an additional 14 days. (Glick Dec. ISO MTC Inter., ¶ 5)

On February 24, 2025, 8 Vini responded to interrogatories and request for production of document with unverified responses-which were later verified on March 31, 2025 .(Glick Dec. ISO MTC Inter., ¶ 6, Friend Dec. IOMTC Documents (Friend Dec., IOMTC Docs., ¶ 3)

On March 14, 2025, Plaintiff sent Defendant a meet-and-confer letter. (Glick Dec. ISO MTC Inter., ¶ 7)

On March 31, 2025, Defendant served verified, supplemental responses to Plaintiff’s Form and Special Interrogatories. Declaration of Kathleen B. Friend IOMTC Interrogatories, (Friend Dec. IOMTC Inter., ¶3) Defendant also proposed a Protective Order. (Glick Dec. ISO MTC Inter., ¶ 8)

On April 1, 2025, Plaintiff responded that the Protective Order was fine and gave opposing counsel permission to add Plaintiff’s counsel’s signature to it and file it. (Glick Dec. ISO MTC Inter., ¶ 9)

On April 2, 2025, 8 Vini responded that it would respond to Plaintiff’s counsel’s meet-and-confer letter including a substantive response to the letter, by April 18, 2025. (Glick Dec. ISO MTC Inter., ¶ 10)

The Court issued the parties’ stipulated protective order on April 17, 2026. (Friend Dec. IOMTC Inter., ¶ 3)

Plaintiff asserts Defendant failed to respond to Plaintiff’s meet-and-confer letter or supplement its responses by April 18, 2025. (Glick Dec. ISO MTC Inter., ¶ 11) Plaintiff also asserts that on April 18,

2025, 8 Vini's counsel sent an email stating "Defendant's supplemental responses in response to your meet and confer letter to follow." Plaintiff's counsel states he asked "when," but never received any response—and Plaintiff asserts this "forced" Plaintiff to file the instant Motion to Compel Further Responses on May 1, 2026. (Glick Dec. ISO MTC Inter., ¶ 11)

On April 18, 2025, in contrast to Plaintiff's statements of lack of response by Defendant, Defendant produced approximately 5,200 pages of documents in addition to 332 it had previously produced. (Friend Dec. IOMTC Inter., ¶ 4)

Defendant's April 18, 2025 production included were a series of emails that contain spreadsheets that detail sales made by Plaintiff that is referenced in 8 Vini's supplemental special interrogatory responses. As noted in some of the emails, a spreadsheet containing this information was transmitted to Plaintiff in October 2024 as part of pre-litigation discussions between Plaintiff and 8 Vini. A copy of certain documents related to the referenced spreadsheet was attached to the Friend Dec. as Ex. 1. (Friend Dec. IOMTC Inter., ¶ 5)

Defendant's April 18th production also included a number of other spreadsheets and emails referencing Plaintiff's compensation and sales, including, but not limited to documents bates stamped as: DEFT005099-5105; DEFT005107-5120; DEFT005122-5130; DEFT00105132-5142; DEFT005145-5158; DEFT005164-5166; DEFT005168-5171; DEFT005172-5185; DEFT005190-5198; DEFT005199-5211; DEFT005212-5247; DEFT005252; DEFT005257. (Friend Dec., IOMTC Inter. ¶ 6)

Defendant's initial production of 332 pages included Plaintiff's pay stubs and final paycheck, along with his personnel file and documents relating to expense reimbursements. (Friend Dec. IOMTC Inter., ¶ 7) In addition to producing Plaintiff's complete personnel file, pay records, and reimbursements forms, Defendant searched almost 100 terms within its files and emails in order to capture all responsive documents in response to Plaintiff's requests. Defendants efforts resulted in a production of about 3,025 documents. Defendant provided responsive documents to all of Plaintiff's requests, except for two: Request No. 34 and No. 35. (Friend Dec. IOMTC Docs., ¶ 4)

On May 17, 2025, Defendant De Giulli suffered a medical emergency while in London, England. (Ciu Dec. ¶ 3) Defendant De Giulli was working a "very reduced" schedule since returning to work after the medical event. Ciu Dec. ¶ 5.

Defendant filed a Motion to Stay on August 13, 2025, because of CEO De Giulli's May 17, 2025, medical event: an acute type B aortic dissection requiring his immediate admission to the Intensive Care Unit at St Mary's Hospital. (Friend Dec. IOMTC Docs., ¶ 5) As of September 4, 2025, Defendant De Giulli had resumed approximately 60% of his previous work load. Ciu Dec. ¶ 5. Defendant submitted a copy of a doctor's report confirming Defendant De Giulli's hospitalization in London. (Friend Dec. IOMTC Docs., Ex. D.)

Plaintiff acknowledges its failure to meet and confer on certain interrogatories and withdraws its motion as to Form Interrogatories 207.1, 207.2 and Special Interrogatories Nos. 16 and 17. (Reply MTC Inter., 3.) Plaintiff contests only Special Interrogatories 5, 8-11, 13-15, 20, and 22-26.

Special Interrogatory No. 5:

Interrogatory: State the amount paid for each type of COMPENSATION Plaintiff earned during his employment with YOU, summarized by pay period.

Court agrees that Defendant has produced the information regarding “amount paid” by producing paystubs. Defendant has also answered how Plaintiff’s commission was calculated in several interrogatories. Defendant has produced Plaintiff’s personnel filed and listed by Bates number, emails referencing Plaintiff’s compensation. Court notes that in his Reply, Plaintiff has dropped his objection on Special Interrogatory No. 6 for an explanation on how the commissions were calculated.

Special Interrogatories No. 8-9:

Plaintiff admits for the first time in his Reply, that “now for the first time in its Separate Statement in support of its Opposition, Defendant clarifies the Bates numbers of the referenced spreadsheets.” Plaintiff ignores that Defendant produced the underlying document to Plaintiff directly “even before he filed suit. (Defendant’s S/S IOMTC Inter., at 9-10.) The documents was produced 12 days before Plaintiff filed the motions to compel. (Defendant’s S/S IOMTC Inter., at 10.) Plaintiff’s objections are overruled.

Special Interrogatories No. 10-11.

Defendant has explained how the commissions were generated based on the formula described in the commission agreement. Court agrees that “this is not a non-response.” Plaintiff’s objections are overruled.

Special Interrogatories No. 13-14.

The court agrees that these multi-part interrogatories “describe in detail...including but not limited to...” is vague as to “in detail,” and answered by the spreadsheet which has been identified by Bates number.

Special Interrogatory No. 15.

This calls for all persons with knowledge of any sale made by the Plaintiff during his employment with the Defendant. The court agrees that the Defendant’s identification of Plaintiff’s direct supervisor and Christina Ciu is a fair starting point. To the extent it calls for identification of persons outside the company, it seems that Plaintiff would have equal if not superior knowledge of whom he contacted inside and outside of the company for sales. Defendant’s production of external and internal communications would also appear fairly to address this inquiry. No further response is ordered.

Special Interrogatories No. 20, 22-24, 26. (leased car allowance, vacation wages)

The court agrees that Defendant answered Special Interrogatories Nos. 20, 22 in its responses to No. 19 and 21. No further response is ordered. Special Interrogatories No. 23, 24, 26 (vacation days) no further response is ordered.

Request for Documents No. 14:

All documents which reflect any revenue received by you from customers to whom Plaintiffs sold your products.

Court agrees that the scope of this request is so vast “all documents which reflect any revenue ...” that it is unduly burdensome and not designed to lead to the discovery of admissible evidence and intrudes upon Defendant’s financial privacy. What about unofficial estimates, cancellation of orders, delays of orders, notes taken on scratch paper of a conversation for an order? Such items would not be reasonably designed to lead to the discovery of admissible evidence. Something more specific, such as income statements, profit and loss statements, would both answer Plaintiff’s concerns and be reasonable. The court finds defendant’s described production of documents up to the present to be comprehensive enough to answer this request adequately. The description of Defendant’s production is sufficient for the court to conclude that Defendant has not “cherry picked” documents for production.

As to the response, “Responding party will produce sufficient documents to allow Plaintiff to identify the referenced sales,” **the Court agrees that Defendant should identify documents to which this response refers within 30 days of service of this order.**

Request for Documents No. 13:

All DOCUMENTS evidencing or RELATED TO revenue received by YOU during Plaintiffs employment with YOU.

Plaintiff wants Defendant to produce broad categories of its internal financial records, spanning almost six years, which are protected by Defendant’s right to financial privacy. Plaintiff cannot articulate a fact-specific justification or theory of relevance for such documents that overcomes Defendant’s financial privacy rights. To the contrary, by Defendant’s production of Plaintiff’s pay statements (DEFT000001-36; DEFT000042-DEFT332; Plaintiff’s personnel file, which includes a description of Plaintiff’s compensation (DEFT000037-41); reimbursement forms signed by Plaintiff and reimbursement checks issued to Plaintiff (DEFT000138-328; DEFT004990-5306); and emails regarding the calculation of Plaintiff’s commissions (DEFT005099-5105;

DEFT005107-5120; DEFT005122-5130; DEFT00105132-5142; DEFT005145-5158; DEFT005164-5166; DEFT005168-5171; DEFT005172-5185; DEFT005190-5198; DEFT005199-5258), Plaintiff will have everything of relevance to the commission issues in this case. Everything else Plaintiff seeks goes far beyond the bounds of discoverable evidence, particularly given the

sensitive nature of these records and Defendant’s right to financial privacy. Given the breadth of Plaintiff’s request, Defendant can only partially comply with this request.

The court agrees with Defendant’s position. In view of the scope of the production – identified by

BATES numbers – the court agrees it appears that “Plaintiff will have everything of relevance to the commission issues in this case.” The court notes this request does not relate to the issues in this case—the Plaintiff’s assertion that he was not paid commissions to which he was entitled. “All documents” related to revenue not only appears to infringe on Defendant’s right of privacy, it does not appear to be reasonably calculated to lead to the discovery of admissible evidence.

Request for Documents No. 15:

All DOCUMENTS evidencing or referencing customers to whom PLAINTIFF sold YOUR products during his employment with YOU

Court agrees that this is “overly broad” in the sense that it is not likely to lead to the discovery of admissible evidence, especially to the extent that others may have worked with customers to whom Plaintiff sold products, and there may be many many documents “referencing” customers that contain no information at all about sales or contact with Plaintiff.

Court recognizes that Defendant’s production of personnel file, which includes a description of customers Plaintiff worked with and internal and external emails responds to this request and does not appear to be “cherry picking.”

Request for Documents No. 16:

All DOCUMENTS which reflect the sale of any product by PLAINTIFF, including any sale in which he was in any way involved, to any of YOUR customers during the time he was employed by YOU including, but not limited to, any DOCUMENTS which in any way reflect the name of the customer, date or dates of the sale, any related contracts or agreements, the amount of the sale, whether and when the customer paid and the amount paid.

The court finds Defendant’s response. Defendant 8 Vini has other persons also engaged in work similar to that carried out by Plaintiff and who were responsible for originating sales and/or finding customers on which Plaintiff now claims commissions. Plaintiff had little to no contact with many of 8 Vini’s accounts and was responsible for the loss of one account due to failure to respond to the client, and 8 Vini was blacklisted from another client Plaintiff was responsible for. Defendant’s production of Plaintiff’s pay statements

(DEFT000001-36; DEFT000042-DEFT332; Plaintiff’s personnel file, which includes a description of Plaintiff’s compensation (DEFT000037-41); reimbursement forms signed by Plaintiff and reimbursement checks issued to Plaintiff (DEFT000138-328; DEFT004990-5306); and emails regarding the calculation of Plaintiff’s commissions (DEFT005099-5105; DEFT005107-5120;

DEFT005122-5130; DEFT00105132-5142; DEFT005145-5158; DEFT005164-5166; DEFT005168-5171; DEFT005172-5185; DEFT005190-5198; DEFT005199-5258), Plaintiff will have everything of relevance to the commission issues in this case. Given the breadth of Plaintiff’s request, Defendant can only partially comply with this request.

The court notes that Defendant's description of the production it has already made does not appear to be "cherry picking" as argued by Plaintiff. On the contrary it appears to be specifically identified and comprehensive. Defendant has already answered, "Responding Party will produce all relevant responsive nonprivileged documents that are within Responding Party's custody and control." The court will not order further production.

Request for Documents No. 17:

All DOCUMENTS evidencing COMPENSATION paid by YOU to Plaintiff, including but not limited to: paychecks, payroll records, including weekly, monthly, and quarterly payroll registers.

Defendant responded: Defendant produced all documents, including Plaintiff's pay statements (DEFT000001-36; DEFT000042-DEFT332; Plaintiff's personnel file, which includes a description of Plaintiff's compensation (DEFT000037-41); reimbursement forms signed by Plaintiff and reimbursement checks issued to Plaintiff (DEFT000138-328; DEFT004990-5306); and emails regarding the calculation of Plaintiff's commissions (DEFT005099-5105; DEFT005107-5120; DEFT005122- 5130; DEFT00105132-5142; DEFT005145-5158; DEFT005164-5166; DEFT005168-5171; DEFT005172-5185; DEFT005190-5198; DEFT005199-5258).

The court finds that Defendant's description of the production it has already made does not appear to be "cherry picking" as argued by Plaintiff. On the contrary it appears to be specifically identified and comprehensive. In addition, Defendant has already answered, "Responding Party will produce all relevant responsive nonprivileged documents that are within Responding Party's custody and control." The court will not order further production.

Request for Documents No. 18:

All non-privileged COMMUNICATIONS RELATING TO any demand for unpaid commissions by PLAINTIFF during or after his employment with YOU including, but not limited to, emails, text messages, handwritten notes, memoranda, personal journals and calendars.

Plaintiff complains that Defendant made an "objection only" response. This is incorrect. Defendant responded by identifying responsive documents by Bates number. "Defendant produced all documents: (DEFT005099-5105; DEFT005107-5120; DEFT005122-5130; DEFT00105132-5142; DEFT005145-5158; DEFT005164-5166; DEFT005168-5171; DEFT005172-5185; DEFT005190-5198; DEFT005199-5258)"

In view of this response the Plaintiff's objections are overruled.

Request for Documents No. 20 & 35:

The court agrees that Defendant should supplement its response with the explanation for its answer

that it has no responsive documents to produce.

Conclusion:

The Plaintiff's motions to compel further responses to interrogatories and document production is denied except for the few items specified above, for which Defendant should respond within 30 days of service of notice of entry of this order. In addition to producing Plaintiff's complete personnel file, pay records, and reimbursements forms, Defendant searched almost 100 terms within its files and emails in order to capture all responsive documents in response to Plaintiff's requests. The court finds Defendant's efforts to respond to Plaintiff's discovery requests have been diligent, thorough and comprehensive.

Plaintiff improperly moved to compel answers to interrogatories that it failed to meet and confer about with Defendant. Defendant has acted with substantial justification and produced voluminous amounts of responsive and Bates stamped, identified documents. In addition, Defendant demonstrated good faith even providing Plaintiff with significant information pre-litigation. Plaintiff's request for sanctions is denied.

16. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

See Line 15.

17. 9:01 AM CASE NUMBER: C23-01080
CASE NAME: DANIELLE DEMOTTO VS. WALNUT CREEK SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY SANCTIONS FOR FAILURE TO COMPLY WITH THE COURT'S DISCOVERY ORDER**
FILED BY: WALNUT CREEK SCHOOL DISTRICT
TENTATIVE RULING:

On November 5, 2025, Defendant Walnut Creek School District filed this motion for an order compelling Plaintiff DANIELLE Demotto to provide responses to written discovery without objections, pursuant to CCP §2030.290 and 2031.300.

Defendant seeks responses to written discovery: Form Interrogatories (General and Employment), Set One, Request for Production of Documents, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One. Defendant further moves for sanctions in the amount of \$6,318. In addition to monetary sanctions, Defendant seeks contempt sanctions.

This motion was set for hearing February 20, 2026.